West Virginia AI Guidance: Data and Student Privacy Passages

Excerpted verbatim from *Guidance, Considerations, and Intentions for the Use of Artificial Intelligence in West Virginia Schools, Version 1.2 (West Virginia Department of Education, March 2025)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. Two paragraphs on page 27 sit beside a sidebar that interleaves with them in the text extraction, so they were transcribed from the rendered page and are marked [graphic]. The educator and district versions of the guiding principle on existing policies are both given because their wording differs.

Plan of Action (excerpt)

Source: page 7

- Safeguarding student wellbeing and data privacy in AI usage

Statement of Need (excerpt)

Source: page 7

… Predictable risks include over-reliance on AI technologies, challenges to independent and creative thinking, reduced social interactions, privacy and safety issues, furthering of digital divides, as well as plagiarism and cheating.

Why talk about AI now? (excerpt)

Source: page 8

Clear, student privacy-centered policies are essential to ensure developmentally appropriate access for all students.

Responsible Use of AI Tools (excerpt)

Source: page 12

… Simultaneously, school districts are tasked with adhering to relevant legal standards concerning data protection and student data privacy. …

District Management and Operations: Learning Management Systems (excerpt)

Source: page 12

Learning Management Systems (LMSs): AI that is natively incorporated into learning management systems by the system vendor has the potential to help analyze student performance data to provide insights to educators, helping them tailor instruction or interventions. These types of AI will fall under the memorandum of understanding (MOU) between the district and the system vendor, thus allowing the analysis of data by the AI, but also protecting student data. …

Guiding Principles for AI Use by Educators (excerpt)

Source: page 14

I reaffirm adherence to existing policies and regulations. AI is one of many technologies used in classroom instruction, and I will use it in alignment with existing policies and regulations to protect student privacy, ensure accessibility to those with disabilities, and protect against harmful content. I will not share personally identifiable information with consumer-based AI systems. I understand that there is a difference between AI that is integrated into technologies purchased by my district, such as our LMS or an assessment platform, and a consumer-based AI system that I purchase or access on my own. I will thoroughly evaluate existing and future technologies and address any gaps in compliance that might arise.

A Variety of Different AI Platforms (excerpt)

Source: page 22

… It is necessary to review the terms and conditions for each system and review county school district policies before using that system. …

Existing Policies (excerpt)

Source: page 23

- 4350 – Procedures for the Collection, Maintenance and Disclosure of Student Information

Guiding Principles for School and District AI Use (excerpt)

Source: page 23

We reaffirm adherence to existing policies and regulations. AI is one of many technologies that may be used in West Virginia schools, and its use will align with existing policies and regulations to protect student privacy, ensure accessibility to those with disabilities, and protect against harmful content. We will not share personally identifiable information with consumer-based AI systems. We will thoroughly evaluate existing and future technologies and address any gaps in compliance that might arise.

Prohibited Use of AI Tools: Teacher Support (excerpt)

Source: page 25

Privacy concerns: AI tools will not be used to monitor classrooms for accountability purposes, such as analyzing teacher-student interactions or tracking teacher movements, which can infringe on students' and teachers' privacy rights and create a surveillance culture.

Prohibited Use of AI Tools: School Management and Operations

Source: page 26

Compromising Privacy: The county school district or school will not use AI in ways that compromise teacher or student privacy or lead to unauthorized data collection, as this violates privacy laws and our system's ethical principles. WVBE Policy 2460 requires that counties are responsible for ensuring that COPPA, CIPA, and FERBA are not violated. … See the Security, Privacy, and Safety section for more information.

Noncompliance with Existing Policies: We will evaluate AI tools for compliance with all relevant policies and regulations, such as privacy laws and ethical principles. We will review the terms and conditions for all AI tools to review if/how personal information is used to ensure that personal data remains confidential and isn't misused.

Protecting Student Privacy and Safety: Security, Privacy, and Safety

Source: page 27

[graphic] AI is a technology tool similar to other educational/instructional technologies. Its powerful implications and novel uses will require more time and experience to fully integrate responsibly. However, planning for the use of AI should be approached in a manner similar to planning for other educational technologies. District and school staff should be able to clearly articulate the needs and uses for AI tools, plan for systematic implementations, monitor uses and impacts, and adjust plans as needed in response to outcomes and user feedback. As part of these planning processes, student and staff privacy must be considered at every step along the way to ensure safety and security.

[graphic] AI systems, especially those used in education, require extensive data to operate efficiently. In an educational setting, these data could include sensitive information about students like learning patterns, academic achievements, and personal details. The foremost ethical concern is student privacy, and districts need to ensure that such sensitive data is handled with utmost care. Obtaining parental consent is crucial, but it is also important to recognize that even with consent, using identifiable data in public AI models is not advisable. Any data information inputted into the AI model, including prompts, has the potential to be incorporated into the model's future iterations and potentially shared with other users. Hence, strict policies, consideration, and discretion are essential when integrating AI in educational settings to safeguard against any privacy breaches or misuse of student data.

Schools should implement reasonable security measures to secure AI technologies against unauthorized access and misuse. These measures may include (1) cataloging the tools used, their purposes/functions, and the information required (e.g., information about individuals, prompts or questions, aggregate data); (2) establishing rules or criteria for who can use AI tools for what purposes and/or creating school-specific guidelines for use of AI tools; and (3) maintaining up-to-date information about the technical details and security implications of the tools in use. All AI systems deployed within the school should be evaluated for compliance with relevant laws and regulations, including those related to data protection, privacy, and students' online safety. Schools and districts should also ensure that staff are adequately trained for how to securely and successfully use AI tools from both cybersecurity and instructional perspectives.

Staff and students are prohibited from entering confidential or personally identifiable information into unauthorized AI tools, such as those without approved data privacy agreements. Sharing confidential or personal data with an AI system could violate privacy if not properly authorized (with appropriate consent, as needed) or if information is not provided via approved procedures.

Special Consideration: Student Age

Source: page 28

Every technology has a set of terms and conditions which must be reviewed. When considering the use of generative AI technologies – for example, ChatGPT, with students under the age of 18 – several key considerations should be addressed:

- First, explicit parental/guardian permission must be obtained for students under 18, ensuring that parents/guardians are fully informed about the nature, capabilities, and limitations of the AI technology, as well as the data privacy and security measures in place.
- It should be noted that specialists in the field of classroom AI have advised that students should ideally be at least 13 years old to utilize AI technology.
- For students under the age of 13, special attention is needed due to stricter laws like the Children's Online Privacy Protection Act (COPPA). Additionally, the use of AI should be closely monitored by educators to ensure that the content and interaction are age-appropriate, respectful of privacy, and aligned with educational goals.

Sample Considerations for Existing School and District Policies (excerpt)

Source: page 29

Guidelines should be incorporated into existing district and school policies. Below are examples of language relevant to responsible use policies, privacy policies, and academic integrity policies.

Privacy Policy: AI & Data Collection

Source: page 29

- **Data Collection:** Parents, guardians, and students will be informed of specific data collection initiatives, and where applicable, consent will be sought. All AI-driven data collection will adhere to local data protection regulations and best practices.
- **Third-Party AI Tools:** Schools may develop an approved list of AI tools which should always be consulted. Unauthorized AI tools might not adhere to data privacy standards.
- **Personal Information:** Staff and students should never input personal, sensitive, or confidential data into any AI system without prior authorization, including any data related to student education records.

AI Companion Apps: Understanding the Risks (excerpt)

Source: page 32

… These risks include privacy concerns, exposure to inappropriate content, and potential dependency on the app for emotional needs. … The collection and storage of sensitive user data by these apps further heightens concerns, as this information may be vulnerable to misuse or insufficient protection.

AI Companion Apps: Potential Risks (excerpt)

Source: page 32

5. Insufficient Privacy Protections: Many apps lack adequate regulation and fail to meet basic privacy standards, putting users' sensitive and personal data at risk of misuse or exploitation.

AI Companion Apps: Recommendations for Schools and Families (excerpt)

Source: page 33

… Highlight key concerns, such as privacy, app addiction, and social development challenges, and teach families to recognize signs of misuse.

Glossary: Data Privacy

Source: page 40

Data Privacy: The aspect of handling, processing, and storing personal and sensitive data with confidentiality and security. In AI, this involves ensuring that data used for training and operating AI systems is protected from unauthorized access and misuse.